

CHAPTER 32.

An Act to raise the percentages by which certain pensions may be increased under the Pensions (Increase) Act, 1920, to permit the payment of increased pensions under the said Act to pensioners residing outside the British Islands, and to require police, local and other public authorities to increase pensions granted by them up to the maximum amount authorised by the said Act.

[7th August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) As from the first day of July, nineteen hundred and twenty-three, the Schedule to the Pensions (Increase) Act, 1920 (hereinafter referred to as the principal Act), shall, as respects pensions not exceeding one hundred pounds payable out of moneys provided by Parliament or out of the Education (Scotland) Fund or by police, local or other public authorities in Great Britain, have effect and be deemed to have had effect as if the percentages by which existing pensions may be increased were—

Additions to percentages by which pensions may be increased.
10 & 11
Geo. 5. c. 36.

- (a) in the case of an existing pension not exceeding twenty-five pounds a year, seventy per cent. instead of fifty per cent. ;
- (b) in the case of an existing pension exceeding twenty-five pounds a year but not exceeding fifty pounds a year, sixty-five per cent. instead of fifty per cent. ; and
- (c) in the case of an existing pension exceeding fifty pounds a year but not exceeding one hundred pounds a year, fifty per cent. instead of forty per cent.

Provided that—

- (i) Where the service, or branch of the service, from which the pensioner retired is a service

or branch of the service in which additional remuneration by way of bonus was paid on the said first day of July, and was reckoned for the purposes of pension, either in whole or in part, in the case of persons retiring from the said service or branch on that date, no addition shall be made to his pension by virtue of the increased percentages authorised by this section greater than such as may be sufficient to increase his pension to the pension of which he would have been in receipt on the second day of July, nineteen hundred and twenty-three, had such bonus been included amongst the salary and emoluments on which his pension was awarded and been reckoned for the purposes of pension to the extent to which it would have been reckoned if he had retired on the said first day of July.

- (ii) Nothing in this Act shall affect the provisions of the said schedule other than those relating to such percentages as aforesaid.

(2) For the purposes of this section, "existing" means existing immediately before the passing of the principal Act.

Repeal of first statutory condition for increase of pension.

2. The first statutory condition for the increase of pensions under the principal Act (which provides that the pensioner must reside in the British Islands) shall cease to have effect.

Pensions granted by public authorities to be increased.

3.—(1) As from the first day of July, nineteen hundred and twenty-three, all pensions granted by a police, local or other public authority in Great Britain to pensioners to whom the principal Act applies and in whose case the conditions laid down by that Act are fulfilled, shall, so long as those conditions continue to be fulfilled, be increased by the pension authority up to the maximum amount authorised by the principal Act as amended by this Act.

(2) Any order made by the Treasury under section three of the principal Act may contain such consequential and supplemental provisions as appear necessary or expedient for securing the effective operation

of the order, and any such order may be revoked, varied, or amended by an order made in like manner.

4. This Act shall be construed as one with the principal Act, and may be cited as the Pensions (Increase) Act, 1924, and the principal Act and this Act may be cited together as the Pensions (Increase) Acts, 1920 and 1924.

Construc-
tion and
short title.

CHAPTER 33.

An Act to amend paragraph (3) of section two of the Old Age Pensions Act, 1908.

[7th August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Paragraph (3) of section two of the Old Age Pensions Act, 1908, as amended by subsection (1) of section two of the Old Age Pensions Act, 1919 (which contains the statutory condition as to means), shall for all purposes have effect as though after the words "calculated under this Act" there were inserted the words "after deducting therefrom such part, if any, thereof, but not exceeding in any case thirty-nine pounds, as is derived from any source other than earnings."

Amendment
of statutory
condition as
to means.
8 Edw. 7.
c. 40.
9 & 10
Geo.5.c.102.

2.—(1) This Act may be cited as the Old Age Pensions Act, 1924; and the Old Age Pensions Acts, 1908 to 1919, and this Act may be cited together as the Old Age Pensions Acts, 1908 to 1924.

Short title
and extent.

(2) This Act shall not extend to Northern Ireland.